

7. 9:00 AM CASE NUMBER: MSC22-00438

CASE NAME: GODFREY VS. DENARD

*HEARING ON MOTION IN RE: TO SET ASIDE ORDER UNDER CCP 473 (B)

FILED BY: GODFREY, LAVON

TENTATIVE RULING:

Denied. Plaintiff has set forth no valid legal basis for his failure to follow **published and established** procedures for Law and Motion matters in this Court.

Law & Motion

Add On

8. 9:00 AM CASE NUMBER: C22-00922

CASE NAME: TREK HOLDINGS VS. CAREPATROL FRANCHISE

HEARING ON SUMMARY MOTION JUDGMENT/ADJUDICATION

FILED BY:

TENTATIVE RULING:

Before the Court is Defendant CarePatrol Franchise Systems, LLC and Defendant Best Life Brands, LLC (collectively, "Defendants") Motion for Summary Judgment or in the alternative Summary Adjudication ("Motion"). The Motion relates to Plaintiff Trek Holdings LLC and Plaintiff Kevin Pickolick (collectively, "Plaintiffs")'s First Amended Complaint for (1) breach of written contract; (2) tortious interference with contract and economic relations; and (3) negligent interference with contracts and economic relations.

As a threshold issue, Defendants' notice is fatally defective.

In order to move for summary adjudication, the party moving must specify in its notice of motion and motion the claim, causes of action, or issues it is moving on. (California Rules of Court, rule 3.1350 (b).) A notice of motion must state the "grounds upon which it will be made." (*Homestead Savings v. Superior Court* (1986) 179 Cal.App.3d 494, 499 [citing Code Civ. Proc. § 1010].) The court has no power to adjudicate others. (*Maryland Cas. Co. v. Reeder* (1990) 221 Cal.App.3d 961, 974 n. 4; *Homestead, supra*, 179 Cal. App. 3d at p. 499.) A party does not waive any requirement of notice for a subissue that was not set forth in the notice by responding to the argument. (*Homestead, supra*, 179 Cal.App.3d at p. 499.) "In the case of a motion for summary adjudication, the motion must at least identify the specific issues or subissues to be adjudicated." (*Id.*)

"A motion for summary adjudication tenders only those issues or causes of action specified in the notice of motion, and may only be granted as to the matters thus specified." (*Schmidlin v. City of Palo Alto* (2007) 157 Cal.App.4th 728, 743-744.) "The movant must 'state[] specifically in the notice of motion and ... repeat[], verbatim, in the separate statement of undisputed material facts,' 'the specific cause of action, affirmative defense, claims for damages, or issues of duty' as to which summary adjudication is sought." (*Id.* at 744.)

Here, Defendants' Notice of Motion fails to identify any specific issue, claim or defense it seeks summary adjudication of. Instead, the notice states that "summary judgment is warranted as a matter of law" on the basis of four separate factual assertions, none of which are tied to a specific cause of action in the First Amended Complaint.

Furthermore, even if the Notice of Motion were not fatally defective, Defendants' separate statement also fails to comply with California Rules of Court, Rule 3.1350.

On a motion for summary adjudication, the separate statement must tie each "undisputed material fact" to the particular claim, defense or issue sought to be adjudicated. (Cal. Rules of Ct, Rule 3.1350(b).) Specifically, California Rules of Court, Rule 3.1350(b) states:

"If made in the alternative, a motion for summary adjudication may make reference to and depend on the same evidence submitted in support of the summary judgment motion. If summary adjudication is sought, whether separately or as an alternative to the motion for summary judgment, the specific cause of action, affirmative defense, claims for damages, or issues of duty must be stated specifically in the notice of motion and be repeated, verbatim, in the separate statement of undisputed material facts."

Here, although the Defendants purport to move against each of Plaintiffs' three separate causes of action (although as noted above, this is not set forth in the Notice of Motion), the separate statement does not tie each "undisputed material fact" to the specific cause of action to be adjudicated. Instead, Defendants provide a list of "undisputed material facts" that purport to apply to all causes of action on which they seek summary adjudication.

When multiple causes of action, issues or defenses are presented for summary adjudication in one motion, each cause of action, issue or defense to which the motion is directed must have a separate section heading indicating the issue number and specifying the issue. (Cal. Rules of Ct., Rule 3.1350(d).)

Specifically, California Rules of Court, Rule 3.1350(d) states: "(1) The Separate Statement of Undisputed Material Facts in support of a motion must separately identify: [¶] (A) Each cause of action, claim for damages, issue of duty, or affirmative defense that is the subject of the motion; and [¶] (B) Each supporting material fact claimed to be without dispute with respect to the cause of action, claim for damages, issue of duty, or affirmative defense that is the subject of the motion."

This procedural deficiency makes it difficult for the court to efficiently resolve the motion, as "[t]he parties' separate statements 'are intended to permit the judge to determine quickly whether the motion is supported by sufficient undisputed facts. If the opposing statement disputes an essential fact alleged in support of the motion, the judge merely has to review the evidence cited in support of that fact. This saves the judge from having to review all the evidentiary materials filed in support of and in opposition to the motion.'" (*St. Paul Mercury Ins. Co. v. Frontier Pac. Ins. Co.* (2003) 111 Cal.App.4th 1234, 1248.)

It is within the trial court's discretion to deny a summary judgment motion when the moving party fails to comply with the separate statement requirement. (*Wall Street Network, Ltd. v. New York Times Co.* (2008) 164 Cal.App.4th 1171, 1189; Code Civ. Proc. § 437c, subdivision (b)(1) ["The failure

to comply with this requirement of a separate statement may in the court's discretion constitute a sufficient ground for denying the motion."]

Because both the Notice of Motion and the Separate Statement are procedurally defective as described above, Defendants' motion is **denied**.

Law & Motion
Add On 2

9. 9:00 AM CASE NUMBER: C25-02332
CASE NAME: DYNE WHITMORE VS. ANTIOCH UNIFIED SCHOOL DISTRICT,
*HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL FOR PLAINTIFF
FILED BY:
TENTATIVE RULING:

Unopposed. **Granted**, based on counsel's declaration that there has been an irremediable breakdown in the attorney/client relationship.

Law & Motion
Add On 3

10. 9:00 AM CASE NUMBER: MSC21-02349
CASE NAME: TAYLOR VS. AMAZON
*HEARING ON MINOR'S COMPROMISE AS TO ROMEO CERNA
FILED BY:
TENTATIVE RULING:

This matter was previously on calendar and granted.